Superior Court of the State of California
County of Orange

DEPT C13 TENTATIVE RULINGS

The Honorable Nico A. Dourbetas

Civil Court Reporters: The Court does not provide court reporters for law and motion hearings. Please see the Court's website for rules and procedures for court reporters obtained by the Parties.

Tentative Rulings: The Court will endeavor to post tentative rulings on the Court's website by 4 p.m. on the day before the motion is set to be heard. Do NOT call the Department for a tentative ruling if none is posted. **The Court will NOT entertain a request for continuance or the filing of further documents once a tentative ruling has been posted.**

Submitting on the Tentative Ruling: If ALL counsel intend to submit on the tentative ruling and do not wish oral argument, please advise the Court's clerk or courtroom attendant by calling (657) 622-5213. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party shall give Notice of Ruling and prepare an Order for the Court's signature if appropriate under CRC 3.1312. **Please do not call the Department unless ALL parties submit on the tentative ruling.**

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or whether the tentative ruling shall become the final ruling.

Appearances: Counsel may appear by video on Zoom.
1. Visit https://www.occourts.org/media-relations/aci.html

Date: May 29, 2026

1	**Roberson vs. Best Western International, Inc** 2023-01341991	**Motion – Other (For An Order Granting Relief From Waiver Of Trial By Jury)** Plaintiff Ronna Roberson's motion for relief from jury waiver is GRANTED. (See Code Civ. Proc., § 631, subd. (g); TriCoast Builders, Inc. v. Fonnegra (2024) 15 Cal.5th 766, 773, 779-780, 782-783.) Plaintiff admits she has not timely posted jury fees. Plaintiff has, however, given timely notice of her demand for a jury trial in the

		complaint and all of her CMC statements. (Compl. at p. 29 [“Plaintiff hereby demands a jury trial on all issues so triable.”]; ROA Nos. 25, 47, 57, 59 [3/25/25, 4/28/25, 11/18/25 CMC statements], 63 [notice of posting jury fees].) Further, the Court has already set the matter for a jury trial (ROA No. 61 [11/25/25 minute order]); plaintiff has posted the requisite jury fees as of 2/2/26 (Janfaza Decl. ¶ 7; see ROA No. 63); the trial date is still well over a year away on 8/2/27; and nothing in the record or the defendants’ opposition papers suggests that anyone will suffer any hardship or prejudice if the court grants plaintiff relief from the jury waiver. (See Castillon-Mendoza Decl., in passim.) Where, as here, the plaintiff has made a timely demand, but has failed to timely post the jury deposit fee, “lack of hardship to the other parties or the court is generally controlling, absent other factors that weigh against relief.” (TriCoast Builders, Inc. v. Fonnegra, supra, 15 Cal.5th at p. 782.) Plaintiff shall give notice.
3	**Pimentel vs. Trider** 2024-01388480	**Motion to Deem Facts Admitted** Defendants Trider Corporation and Alan Trider’s unopposed Motion to Deem Matters Admitted as to Request for Admissions, set one, propounded to plaintiff David Pimentel is granted. Trider is awarded sanctions in the total amount of $1,160.00 against Pimentel, payable within 30 days. The Court awards sanctions in the amount of $1,160.00 which reflects 2 hours motion preparation and hearing time @ $550 per hour + $60 filing fee. Trider to give notice.

4	**Martinez vs. Mercedes-Benz USA, LLC** 2024-01444685	**1. Motion to Compel Arbitration** **2. Case Management Conference** Mercedes-Benz USA, LLC's motion to compel Plaintiff Iriz Y. Gonzalez Martinez to submit her claims to binding contractual arbitration is granted. MBUSA is a stated Third Party Beneficiary to the lease agreement containing the arbitration agreement. This action is stayed pending resolution of the arbitration. The Court sets an arbitration review hearing for February 1, 2027 at 9:00 a.m. in this department. MBUSA request for judicial notice is denied. Martinez's request for judicial notice is granted. MBUSA to give notice.
5	**Saadeh vs. Bdair** 2022-01248722	**Motion to Compel Production** Defendants Mohamed Bdair and Goldenlinens, LLC's Motion to Compel Plaintiff Belal Saadeh's Further Responses to Request for Production of Documents, Set One – Request Nos. 12 and 13 is GRANTED in part. (Code Civ. Proc. § 2031.310.) As part of his damages, Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. (FAC ¶¶ 25–28, 91.) Moreover, in response to Form Interrogatory No. 8.1, Plaintiff was asked whether he attributed any loss of income or earning capacity to the incident. Plaintiff responded: "Yes, loss of profits and excess tax liability resulting from the business operations of MB Home Linen & More, the company usurped by Defendants." Defendants served document demands seeking evidence of Plaintiff's tax damages.

- Request for Production No. 12: Documents evidencing tax-related damages Plaintiff allegedly sustained; and
- Request for Production No. 13: Correspondence with any tax preparers or professionals relating to the alleged tax damages.

Plaintiff objected to the production of such documents on the grounds of the attorney-client privilege, work product, premature expert discovery, relevant, privacy, and tax-return privilege, and produced no documents.

"Tax returns are privileged from disclosure. The tax return privilege 'is not absolute' and 'will not be upheld when (1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the lawsuit is inconsistent with the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved.'" (Strawn v. Morris, Polich & Purdy, LLP (2019) 30 Cal.App.5th 1087, 1098 [cleaned-up].)

Defendants seek to invoke the second of the above exceptions. In Wilson v. Superior Court (1976) 63 Cal.App.3d 825 (Wilson), the Plaintiff brought suit against accountants whom she alleged had "negligently and improperly advised her on the tax consequences of a sale of real property," leading to her damages. (Id. at 827.) The Court in Wilson explained: "By her complaint, plaintiff has placed in issue the existence and the content of her tax returns and the tax consequences of the computations thereon. The gravamen of her lawsuit is so inconsistent with the continued assertion of the taxpayer's privilege as to compel the conclusion that the privilege has in fact been waived." (Id. at 830.) "To permit plaintiff to produce evidence of the contents of those returns…while successfully resisting their disclosure on grounds of privilege would be manifestly unfair to defendants. Accordingly, plaintiff can either maintain her lawsuit or the confidentiality of her returns, but not both." (Ibid.)

Unlike Wilson, this action concerns a business dispute involving fraud and breach of an agreement. However, as part of his damages Plaintiff alleges Defendants' conduct resulted in inaccurate tax filings and tax penalties. While the court agrees Plaintiff's tax-related damages are relevant to Plaintiff's claims, they are not the "gravamen" of his lawsuit. Therefore, Plaintiff has not waived the tax return privilege at this time.

But the implication of the tax return privilege does not render other documents related to Plaintiff's tax related damages immune from discovery. "The fact that financial records are difficult to obtain or that a tax return would be helpful, enlightening or the most efficient way to establish financial worth is not enough." (Weingarten v. Superior Court (2002) 102 Cal.App.4th 268, 276.)

Accordingly, the motion is GRANTED as follows: Within 30 days,

- Plaintiff is to provide a further verified response to Request Nos. 12 and 13.
- Request Nos. 12 and 13 are limited to the years 2018-2020.
- To the extent a privilege is claimed, Plaintiff is to produce a privilege log, reasonably identifying the document (date, author, recipient, subject matter) and the claimed privilege.
- At this time, Plaintiff is not ordered to produce his tax returns. However, the Court reserves the right to reconsider the issue if additional facts are discovered which make the tax returns necessary to substantiate Plaintiff's claim of tax-related damages.

Plaintiff's request for monetary sanctions is DENIED.

Moving Parties shall give notice.

6	**Serrano vs. Dana Point Marina Inn** 2025-01482094	**1. Motion to Strike Portions Of Complaint** **2. Demurrer to Complaint** Defendant Dana Harbor Inn, LLC's demurrer to Plaintiff Angelia Serrrano's Complaint is SUSTAINED as to the First, Fourth, Fifth, Sixth, and Seventh causes of action and OVERRULED as to the Eighth cause of action. (Code Civ. Proc, §430.10, subd. (e).) Plaintiff may file a First Amended Complaint to attempt to address the deficiencies in the First, Fourth, Fifth, Sixth, and Seventh Causes of Action alleged in the Complaint. General Authority A demurrer can be used only to challenge defects that appear on the face of the pleading under attack; or from matters outside the pleading that are judicially noticeable. (Blank v. Kirwan (1985) 39 Cal.3d 311, 318; Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) For the purpose of testing the sufficiency of the cause of action, the demurrer admits the truth of all material facts properly pleaded (i.e., all ultimate facts alleged, but not contentions, deductions or conclusions of fact or law). (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 966-967; Serrano v. Priest (1971) 5 Cal.3d 584, 591.) COA 1: Battery "A battery is any intentional, unlawful and harmful contact by one person with the person of another. [Citation.] A harmful contact, intentionally done is the essence of a battery. [Citation.] A contact is 'unlawful' if it is unconsented to." (Ashcraft v. King (1991) 228 Cal.App.3d 604, 611.) Here, Plaintiff alleges that Defendants failed to appropriately inspect its hotel rooms for signs of bed bug infestation and failed to warn Plaintiff of the risk of bed bugs being present. Plaintiff alleges that Defendants' failure was "intentional, deliberate, and

		reckless" and resulted in Plaintiff being touched by the infestation of bed bugs. Plaintiff does not allege that Defendant intentionally exposed Plaintiff to bed bugs. Plaintiff does not allege that any Defendant or agent of any Defendant physically touched her. This is not sufficient to state a cause of action because no allegation of harmful contact by any person with Defendant. Plaintiff does not allege that any exposure to bed bugs was intended by any Defendant. Thus, Plaintiff does not sufficiently allege facts constituting the elements of battery. COA 4: Intentional Infliction of Emotional Distress The elements of a claim for intentional infliction of emotional distress are extreme and outrageous conduct by the defendant with the intent of causing, or a reckless disregard for the probability of causing emotional distress; the plaintiff's suffering severe or extreme emotional distress; and actual and proximate causation of emotional distress by the defendant's outrageous conduct. Potter v. Firestone Tire & Rubber Co (1993) 6 Cal.4th 965. "Extreme and outrageous conduct is conduct that is so extreme as to exceed all bounds of that usually tolerated in a civilized community … and must be of a nature which is especially calculated to cause, and does cause, mental distress." (Chang v. Lederman (2009) 172 Cal.App.4th 67, 86-87 [internal quotation marks and citations omitted].) Plaintiffs' cause of action is based upon allegations that Defendants willfully permitted a bedbug infestation of their premises and failed to warn Plaintiff of the danger. This is not sufficient to establish outrageous conduct directed at Plaintiffs. There is no allegation in the Complaint, nor can it be construed from the allegations of the Complaint that any Defendant targeted Plaintiff with exposure to bed bugs. At most, the allegations of the Complaint describe negligent conduct and fails to approach the level of despicable and

		outrageous conduct sufficient to state a cause of action for IIED. COA 5: Fraudulent Concealment "The elements of a claim for fraudulent concealment require a plaintiff to show that: '(1) the defendant . . . concealed or suppressed a material fact, (2) the defendant [was] under a duty to disclose the fact to the plaintiff, (3) the defendant . . . intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff [was] unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.' " (Prakashpalan v. Engstrom, Lipscomb & Lack (2014) 223 Cal.App.4th 1105, 1130.) Claims of fraud by concealment must be pleaded with particularity. (Rattagan v. Uber Technologies, Inc. (2024) 17 Cal.5th 1, 43 ["California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim."].) Plaintiff has failed to allege this cause of action with the required degree of specificity. Plaintiff fails to allege specific facts establishing that Defendant had a duty to disclose a bed bug infestation to Plaintiffs and that they intentionally concealed this fact from Plaintiffs. Furthermore, the Complaint fails to allege specific facts demonstrating Defendant had exclusive knowledge of the alleged infestation or that Defendant took steps to actively conceal the existence of the infestation. COA 6: Private Nuisance Plaintiffs' private nuisance cause of action is premised upon allegations that they were guests at Defendants' hotel. However, in order to allege a cause of action for private

		nuisance, a plaintiff must allege either a possessory interest in the land affected or hold a nonpossessory estate adversely affected by the alleged nuisance. (See Rest. 2d Torts §821E.) A hotel guest does not have such a property right, rather, a hotel guest is treated as a licensee on the property, and this is not enough under California law, to confer standing to maintain an action for private nuisance. (See Venuto v. Owens-Corning Fiberglass Corp. (1971) 22 Cal.App.3d 116, 125 ["Although 'any interest sufficient to be dignified as a property right' will support an action based on a private nuisance, and this includes within its purview a tenancy for a term, such right does not inure in favor of a licensee, lodger or employee."]) COA 7: Public Nuisance Civ. Code § 3480 defines a public nuisance as "one which affects at the same time an entire community or neighborhood, or any considerable number of persons, although the extent of the annoyance or damage inflicted upon individuals may be unequal." For a private plaintiff to have standing to pursue a claim for public nuisance, the complaint must allege the existence of a public nuisance and also that the plaintiff has sustained a special injury distinct from the more general public harm. (Rincon Band of luiseno Mission Indians etc. v. Flynt (2021) 70 Cal.App.5th 1059, 1102.) Here, Plaintiff fails to allege the existence of a condition that affects a considerable number of persons. The alleged bedbug infestation is localized to a private hotel room. To the extent that a public nuisance is alleged, Plaintiffs fails to differentiate their alleged injury suffered as a result of the infestation as a special injury. COA 8: Breach of Contract

		"A cause of action for breach of contract requires pleading of a contract, plaintiff's performance or excuse for failure to perform, defendant's breach and damage to plaintiff resulting therefrom." (McKell v. Washington Mut., Inc. (2006) 142 Cal.App.4th 1457, 1489.) The "failure to attach or to set out verbatim the terms of the contract [is] not fatal to [a] breach of contract cause of action." (Miles v. Deutsche Bank Nat'l Trust Co. (2015) 236 Cal.App.4th 394, 402.) Rather, " 'a plaintiff may plead the legal effect of the contract rather than its precise language.' " (Ibid., citing Construction Protective Services, Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 199.) Plaintiff alleges that he entered into a written contract for the rent of his hotel room with Defendants and paid the rental price of the room. (Compl. ¶¶ 135-137.) She further alleges that Defendants breached the contract by failing to provide a habitable room for lodging. (Compl. ¶ 138.) Plaintiff has alleged the existence of a written contract and has alleged the legal effect of the contract, which is sufficient to overcome a demurrer. Thus, the Demurrer to the eighth cause of action is OVERRULED. Motion to Strike In light of the foregoing ruling on the demurrer, the motion to strike is DENIED as MOOT. Moving Defendant shall provide notice of this ruling.
9	**De La Torre vs. Tippett Moorhead & Haden** 2025-01501827	**1. Motion to Strike Complaint** **2. Demurrer to Amended Complaint** DEMURRER Defendants Tippett Moorhead & Haden, Michael Moorhead and Daniel Church's

		Demurrer to the First Amended Complaint is OVERRULED. Defendants demur to the second and fifth causes of action of the FAC. Second Cause of Action – Breach of Fiduciary Duty "A fiduciary relationship is any relation existing between parties to a transaction wherein one of the parties is bound to act with the utmost good faith for the benefit of the other party." (Gilman v. Dalby (2009) 176 Cal.App.4th 606, 613.) The elements of a claim for breach of fiduciary duty are (1) the existence of a fiduciary relationship, (2) its breach, and (3) damage proximately caused by that breach. (Mendoza v. Continental Sales Co. (2006) 140 Cal.App.4th 1395, 1405.) Defendants contend the insurer-insured relationship is not a fiduciary relationship, and the cause of action for breach of fiduciary duty, regardless of its labeling in the complaint, amounted to professional negligence because the insurance broker failed to "execute its obligations as an insurance broker." (Hydro-Mill, supra, 115 Cal.App.4th at 1159, 1160.) Therefore, Plaintiff cannot state a claim for breach of fiduciary duty against Defendants. In Opposition, Plaintiff again argues Defendants took on specialized duties beyond the mere procurement of insurance, acting as broker and also acting as financial advisors who provided financial consultation integral to Plaintiff's insurance decisions, (FAC, ¶¶ 29, 30.) The investment adviser/client relationship is one such relationship giving rise to a fiduciary duty as a matter of law. (Hasso v. Hapke (2014) 227 Cal.App.4th 107, 140.) Corporations Code § 25009(a) defines "investment advisor" as "any person who, for compensation, engages in the business of advising others, either directly or through

		publications or writings, as to the value of securities or as to the advisability of investing in, purchasing or selling securities, or who, for compensation and as a part of a regular business, publishes analyses or reports concerning securities.” The FAC alleges Defendants sold highly sophisticated and complex insurance and securities products to consumers. They also advised, recommended and assisted Plaintiff with using loan proceeds to invest in a securities portfolio with a modeled return on investment sufficient to pay for the insurance premiums. (FAC, ¶¶ 9, 24.) Defendants performed financial modeling, predicted return on investments, and facilitated Plaintiff s investment in said securities. (FAC, ¶¶ 25, 26.) Such allegations are sufficient to support a finding that Defendants were acting as investment advisors within the meaning of Corporations Code section 25009. (See Hasso, supra, 227 Cal.App.4th at 141-145.) Accordingly, the demurrer to the second cause of action is OVERRULED. Fifth Cause of Action – Unfair Competition The Unfair Competition Law (UCL), Business and Professions Code section 17200 et seq., prohibits unfair competition, including unlawful, unfair or fraudulent business acts. (Cel-Tech Comm., Inc. v. Los Angeles Cellular Tele. Co. (1999) 20 Cal.4th 163, 180.) “A UCL action is an equitable action by means of which a plaintiff may recover money or property obtained from the plaintiff or persons represented by the plaintiff through unfair or unlawful business practices. It is not an all-purpose substitute for a tort or contract action.” (Cortez v. Purolator Air Filtration Products Co. (2000) 23 Cal.4th 163, 173.) In ruling on the prior demurrer, the court found that Plaintiff had alleged an unfair business or fraudulent business practice but had not alleged facts identifying any money paid to the Defendants that constitute

		restitution, such as commissions. (ROA 39.) Plaintiff "cured" this defect by adding the allegation that he paid Defendants a commission. (FAC, ¶ 51.) Defendants argue that, by law, a commission on an insurance policy is paid by the insurance company to the agent pursuant to the contract between them. (Ins. Code § 769.1.) The insured does not pay the commission. But that contract is not before the court and it is unknown whether the commission was paid by the insurance company or not. Plaintiff alleges he paid Defendants a commission. This is sufficient for purposes of alleging an UCL claim. Accordingly, the demurrer to the fifth cause of action is OVERRULED. MOTION TO STRIKE Defendants Tippett Moorhead & Haden, Michael Moorhead and Daniel Church's Motion to Strike Portions of the First Amended Complaint is DENIED. Defendants move to strike the following allegations from the FAC: (1) Plaintiff's claim for restitution against Defendants in connection with the fifth cause of action for Violation of Unfair Competition Law, Business and Professions Code § 17200, et seq. at paragraph ¶ 52 of the FAC. (2) Prayer of Relief No. 2 seeking "compensatory and restitution damages in amount exceeding $2 million." (3) Prayer of Relief No. 4 seeking "declaratory and/or injunctive relief." (4) Prayer of Relief No. 5 seeking "Restitution damages according to proof." In light of the court's ruling that Plaintiff has stated a claim for unfair competition, the motion to strike is DENIED. Moving Parties shall give notice.

12	Deluhery vs. UCI Health 2024-01410575	Demurrer to Complaint Defendant Regents of the University of California’s unopposed Demurrer to Plaintiff Rod Deluhery’s Complaint is SUSTAINED. (Code Civ. Proc. §430.10. subd. (e).) Defendant demurs to the second cause of action for wrongful termination in violation of public policy. Subject to certain exceptions, Government Code section 815 “abolishes common law tort liability for public entities.” (Miklosy v. Regents of University of California (2008) 44 Cal.4th 876, 899.) Government Code section 815 provides as follows: (a) A public entity is not liable for an injury, whether such injury arises out of an act or omission of the public entity or a public employee or any other person. (b) The liability of a public entity established by this part (commencing with Section 814) is subject to any immunity of the public entity provided by statute, including this part, and is subject to any defenses that would be available to the public entity if it were a private person. Plaintiff does not identify any statutory basis for the second cause of action in the Complaint and has not opposed the demurrer. Accordingly, the demurrer is SUSTAINED. Plaintiff shall have 14 days to file a First Amended Complaint to allege a basis for Defendant’s liability as a public entity for this cause of action. Defendant shall provide notice.